

बिड दस्तावेज़ / Bid Document

बिड विवरण/Bid Details	
बिड बंद होने की तारीख/समय /Bid End Date/Time	17-07-2026 17:00:00
बिड खुलने की तारीख/समय /Bid Opening Date/Time	17-07-2026 17:30:00
बिड पेशकश वैधता (बंद होने की तारीख से)/Bid Offer Validity (From End Date)	90 (Days)
मंत्रालय/राज्य का नाम/Ministry/State Name	Ministry Of Steel
विभाग का नाम/Department Name	Steel Authority Of India Limited
संगठन का नाम/Organisation Name	Bhilai Steel Plant
कार्यालय का नाम/Office Name	Materials Management
शिकायत निवारण के संपर्क विवरण/ Contact details of Grievance redressal	HOD Email id :mkkulkarni@sail.in Buyer Email id: bsp.mjb00013@sail.in
कुल मात्रा/Total Quantity	13
वस्तु श्रेणी /Item Category	PROJECTOR, STANDARD RESOLUTION: 1024X768
GeMARPTS में खोजी गई स्ट्रिंग्स / Searched Strings used in GeMARPTS	PROJECTOR,STANDARD RESOLUTION:1024X768
GeMARPTS में खोजा गया परिणाम / Searched Result generated in GeMARPTS	Projector Lamps, Cleaning Duster (V3), Multimedia Projector (MMP), Projector Screen (V2), Projector Mounting Stand (V2), Profile Projector (Version 2), Dry Erase Writing Boards (V3), Calcium Standard, File/Folder (V3), Turbidity Standard
अधिसूचना के लिए चयनित प्रासंगिक श्रेणियाँ / Relevant Categories selected for notification	Multimedia Projector (MMP)
एमएसएमई के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है/MSE Relaxation for Years of Experience and Turnover	No
स्टार्टअप के लिए अनुभव के वर्षों और टर्नओवर से छूट प्रदान की गई है /Startup Relaxation for Years of Experience and Turnover	No
विक्रेता से मांगे गए दस्तावेज़/Document required from seller	Certificate (Requested in ATC),OEM Authorization Certificate,Additional Doc 1 (Requested in ATC),Additional Doc 2 (Requested in ATC) *In case any bidder is seeking exemption from Experience / Turnover Criteria, the supporting documents to prove his eligibility for exemption must be uploaded for evaluation by the buyer

बिड विवरण/Bid Details	
क्या आप निविदाकारों द्वारा अपलोड किए गए दस्तावेजों को निविदा में भाग लेने वाले सभी निविदाकारों को दिखाना चाहते हैं? संदर्भ मेनू है/Do you want to show documents uploaded by bidders to all bidders participated in bid?	No
बिड लगाने की समय सीमा स्वतः नहीं बढ़ाने के लिए आवश्यक बिड की संख्या। / Minimum number of bids required to disable automatic bid extension	3
दिनों की संख्या, जिनके लिए बिड लगाने की समय-सीमा बढ़ाई जाएगी। / Number of days for which Bid would be auto-extended	7
ऑटो एक्सटेंशन अधिकतम कितनी बार किया जाना है। / Number of Auto Extension count	1
बिड से रिवर्स नीलामी सक्रिय किया/Bid to RA enabled	No
क्रेता के लिए उपलब्ध आईटीसी/ITC available to buyer	Yes
बिड का प्रकार/Type of Bid	Two Packet Bid
तकनीकी मूल्यांकन के दौरान तकनीकी स्पष्टीकरण हेतु अनुमत समय /Time allowed for Technical Clarifications during technical evaluation	2 Days
निरीक्षण आवश्यक (सूचीबद्ध निरीक्षण प्राधिकरण /जेम के साथ पूर्व पंजीकृत एजेंसियों द्वारा)/Inspection Required (By Empanelled Inspection Authority / Agencies pre-registered with GeM)	No
Payment Timelines	Payments shall be made to the Seller within 30 days of issue of consignee receipt-cum-acceptance certificate (CRAC) and on-line submission of bills (This is in supersession of 10 days time as provided in clause 12 of GeM GTC)
मूल्यांकन पद्धति/Evaluation Method	Total value wise evaluation
मध्यस्थता खंड/Arbitration Clause	No
सुलह खंड/Mediation Clause	No

ईएमडी विवरण/EMD Detail

आवश्यकता/Required	No
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ईपीबीजी विवरण /ePBG Detail

आवश्यकता/Required	No
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बोली विभाजन लागू नहीं किया गया/ Bid splitting not applied.

एमएसई खरीद वरीयता/MSE Purchase Preference

एमएसई खरीद वरीयता/MSE Purchase Preference	No
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एमएसई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MSE

सक्षम प्राधिकारी का नाम/Name of Competent Authority	DGM
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	DGM
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	MM
सीए अनुमोदन संख्या/CA Approval Number	N1
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	29-06-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण//Brief Description of the Approval Granted by Competent Authority	THIS IS LOW VALUE CASE HENCE MSE PURCHASE PREFERENCE NOT APPLICABLE

Competent Authority Approval for not opting Micro and Small Enterprises Preference : [View Document](#)

एमआईआई खरीद वरीयता/MII Purchase Preference

एमआईआई खरीद वरीयता/MII Purchase Preference	No
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एमआईआई के लिए सक्षम प्राधिकारी का विवरण:/Details of the Competent Authority for MII

सक्षम प्राधिकारी का नाम/Name of Competent Authority	DGM
सक्षम प्राधिकारी का पदनाम/Designation of Competent Authority	DGM
सक्षम प्राधिकारी का कार्यालय/विभाग/प्रभाग/Office / Department / Division of Competent Authority	MM
सीए अनुमोदन संख्या/CA Approval Number	N1
सक्षम प्राधिकारी अनुमोदन तिथि/Competent Authority Approval Date	29-06-2026
सक्षम प्राधिकारी द्वारा प्रदान की गई स्वीकृति का संक्षिप्त विवरण/Brief Description of the Approval Granted by Competent Authority	THIS IS LOW VALUE CASE HENCE MII PURCHASE PREFERENCE NOT APPLICABLE

Competent Authority Approval for not opting Make In India Preference : [View Document](#)

ट्रेड्स भुगतान संबंधी विवरण/TReDS Payment Details

This Bid provides for Trade Receivables Discounting System (TReDS) as Preferred mode of payment. For MSME sellers, payments may be processed through a TReDS exchange in which the Buyer is

registered, subject to applicable policy and regulatory guidelines. Accordingly, sellers intending to avail payment through TReDS are required to be registered with at least one TReDS exchange in which the buyer is registered.

If the buyer has mentioned MSE purchase preference in ATC then service provider is required to upload necessary documents for MSE purchase preference for verification by the buyer during evaluation.

PROJECTOR, STANDARD RESOLUTION: 1024X768 (13 pieces)

तकनीकी विशिष्टियाँ /Technical Specifications

क्रेता विशिष्टि दस्तावेज़ /Buyer Specification Document	Download
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इनपुट कर क्रेडिट(आईटीसी) तथा रिवर्स प्रभार (आरसीएम)/Input Tax Credit(ITC) and Reverse Charge(RCM) Details

जीएसटी पर इनपुट कर क्रेडिट /ITC on GST	जीएसटी उपकर कर क्रेडिट /ITC on GST Cess
100%	NA

प्रेषिती/रिपोर्टिंग अधिकारी तथा मात्रा/Consignees/Reporting Officer and Quantity

क्र.सं./S.No.	प्रेषिती/रिपोर्टिंग अधिकारी /Consignee Reporting/Officer	पता/Address	मात्रा /Quantity	डिलीवरी के दिन/Delivery Days
1	Ravi Kumar	490001,Room No. 302, 3rd Floor, Ispat Bhavan Bhilai Steel Plant Bhilai-490001	13	90

क्रेता द्वारा जोड़ी गई बिड की विशेष शर्तें/Buyer Added Bid Specific Terms and Conditions

1. Scope of Supply

Scope of supply (Bid price to include all cost components) : Only supply of Goods

2. Buyer Added Bid Specific ATC

Buyer Added text based ATC clauses

BUYER ADDED BID SPECIFIC ATC

[I] ITEMS MUST BE SUPPLIED IN MANUFACTURER’S ORIGINAL PACKING ONLY.

[II] GUARANTEE/ WARRANTY CLAUSE: THE SUPPLIER SHALL GUARANTEE/ WARRANTY FOR A PERIOD OF 18 MONTHS FROM THE DATE OF SUPPLY OR 12 MONTH

S FROM THE DATE OF COMMISSIONING WHICHEVER IS EARLIER AND IN THE EVENT OF BUYER FINDING, WITHIN THE GUARANTEE PERIOD, THAT THE ITEM ACCEPTED & SUPPLIED, IS NOT PERFORMING AS PER THE REQUIREMENT IN THE PURCHASE ORDER, THE SUPPLIER SHALL BE LIABLE TO REPLACE THE ITEM FREE OF COST ON FOR BSP STORES BASIS, TO THE SATISFACTION OF THE BUYER.

[III] BSP RESERVES THE RIGHT TO REJECT THE OFFERS BASED ON DOCUMENTS SUBMITTED BY THE BIDDERS WITH OR WITHOUT SEEKING ADDITIONAL CLARIFICATIONS. HENCE, BIDDERS ARE REQUESTED TO SUBMIT THE DOCUMENTS ALONG WITH THE OFFERS IN TOTALITY.

[IV] MAY KINDLY NOTE THAT GeM PO SHALL BE REGULARIZED THROUGH SAP ORDER. ALL POST GeM ORDER ACTIVITIES I.E. MATERIAL RECEIPTS & GRN, BILL PROCESSING AND ANY OTHER POST ORDER ACTIVITY SHALL BE DONE OVER SAIL BSP'S SAP.

SPECIAL TERMS AND CONDITIONS:

1) BIDS ARE INVITED FROM FOLLOWING BSP (Bhilai Steel Plant) Preferred Make Manufacturers:

- i) Hitachi
- ii) Canon
- iii) Panasonic
- iv) Sony
- v) Sharp
- vi) HP
- vii) Epson
- viii) BenQ

- 1) PARTY HAS TO SUBMIT CATALOGUE/BROCHURE OF QUOTED MAKE & MODEL.
- 2) PARTY HAS TO GIVE BSP'S SATANDARD GUARANTEE/ WARRANTY OR OEM'S WARRANTY/GUARANTEE WHICHEVER IS MORE FOR THE SUPPLIED PROJECTORS.
- 3) PARTY HAS TO INSTALL THE ITEMS AT VARIOUS LOCATIONS IN PLANT AND MINES.
- 4) THE INSTALLATION & TRAINING OF OPERATION OF ITEMS SHALL BE DONE FREE OF COST BY THE PARTY.
- 5) PAYMENT TERMS: 80% PAYMENT AGAINST GOODS RECEIPT NOTE (GRN). REMAINING 20% PAYMENT AGAINST SUCCESSFULL INSTALLATION CERTIFICATE, TO BE ISSUED BY A&D DEPARTMENT.
- 6) VENDOR WOULD BE INFORMED WITHIN 10 DAYS OF RECEIPT OF MATERIAL IN STORES, FOR COMMENCEMENT OF INSTALLATION ACTIVITY.
- 7) MATERIAL TO BE DELIVERED AT BSP STORE.
- 8) ELECTRICAL POWER AND PWN CONNECTIVITY FROM NEAREST AVAILABLE POINT SHALL BE IN VENDOR'S

SCOPE.

- 9) MOUNTING OF MATERIAL (ALONG WITH ANY ACCESSORIES REQUIRED FOR CEILING MOUNTING) AND ANY REQUIRED CONFIGURATION SHALL BE IN VENDOR'S SCOPE.
- 10) IT IS COMPULSORY FOR VENDORS TO FILL IN ALL THE DETAILS AS SOUGHT IN THE DOCUMENT "COMPLIANCE_TO_SPECIFICATIONS_PROJECTOR". VENDORS NOT PROVIDING THE DETAILS ARE LIABLE TO BE REJECTED.

THE BIDS SUBMITTED BY THE SELLERS TO WHOM LTE HAS BEEN ISSUED, SHALL ONLY BE CONSIDERED FOR EVALUATION; BIDS FROM ANY OTHER SELLER SHALL BE TREATED AS UNSOLICITED IN THE INSTANT PROCUREMENT CASE. HOWEVER, THE FIRM(S) INTERESTED TO BE REGISTERED AS A SELLER TO SAIL, SHOULD FILL UP THE VENDOR REGISTRATION FORM, HOSTED ON THE SAIL TENDER WEBSITE AND COMPLETE THE DUE PROCESS OF REGISTRATION WITH SAIL PLANTS/ UNITS.

IN CASE OF SUBMISSION OF OFFER BY BIDDERS HAVING AUTHORIZATION FROM THE MANUFACTURERS (AS MENTIONED ABOVE), FOLLOWING MAY BE NOTED:

(A) OFFER SHALL BE SUBMITTED WITH TENDER SPECIFIC (DULY MENTIONING THE GEM BID NUMBER) VALID AUTHORIZATION OF MANUFACTURER

(B) BACK-UP GUARANTEE, FROM THE MANUFACTURER, FOR QUALITY & WORKMANSHIP OF MATERIAL SHALL BE SUBMITTED ALONG WITH SUPPLIES. [NOTE: SUBMISSION OF OFFER BY THE VENDOR SHALL CONSTITUTE THAT THEY HAVE ACCEPTED THE CONDITION STATED ABOVE].

(C) IT MAY BE NOTED THAT ALL POST ORDER ACTIVITIES (THAT IS REGULARIZING SAP ORDER, MATERIALS RECEIPTS AND GRN, BILL PROCESSING AND ANY OTHER POST ORDER ACTIVITY) SHALL BE DONE OUTSIDE GEM OVER SAIL BSP'S SAP.

(D) VENDOR BILL SUBMISSION ON SRM PORTAL IS COMPULSORY, KINDLY GO THROUGH THE LINK [HTTPS://EPROC.SAIL-BHILAISTEEL.COM/IRJ/PORTAL](https://eproc.sail-bhilaisteel.com/irj/portal) TO GENERATE THE TRACKING NUMBER, WHICH WILL BE USEFUL FOR YOUR FUTURE REFERENCE AND TRACKING PURPOSES.

OTHER COMMERCIAL TERMS & CONDITIONS

Following are other Commercial Terms and Conditions:

- a. Bidder has to indicate the applicable GST rate in their offer.
- b. Delivery Price Basis: FOR Consignee Stores, Consignee Location (all-inclusive of transportation, insurance, taxes etc. as applicable).
- c. Prices shall remain firm till the completion of order where PVC clause is not applicable.

- d. Rejection of bid / tender: In case any specific adverse report is received against a tenderer, as an information or upon enquiry made by SAIL, in respect of capabilities and performance of the tenderer, after receipt of tender but before the opening of the Price Bids, the quotation / tender s ubmitted by such tenderer is liable to be rejected.
- e. Inspection: Inspection, if required may be carried out by the Purchaser or his authorized agent at destination, or at the Supplier's premises or a t any other place as the Purchaser may deem fit as stipulated in the Co ntract during different stages of manufacturing including final Pre-dispa tch inspection and accordingly Inspection Certificates shall be issued.
- f. Notification by Supplier - In case of inspection at the Supplier's premise s, notice in writing shall be sent by the Supplier, **15 days** in advance, to the Purchaser when the stores to be supplied are ready for inspection. I n case of third-party inspection, notice shall be given directly to the thir d-party inspection agency under intimation to purchaser; all charges for third party inspection shall be borne by the Supplier unless specified ot herwise.
- g. Payment shall be released to the Supplier / Vendor / Contractors only af ter verification of GST Return in the form GSTR-2A. The Supplier / Vend or / Contractors must submit their GST Return in the GST Portal, before processing of their bills and payment by Bhilai Steel Plant. Accordingly, all the Suppliers / Vendors / Contractors are hereby informed for compli ance of submission of GST Returns in respect of various kinds of supplie s of goods and / or services covered under a Tax Invoice. Supplier must furnish / upload the necessary documents for availing of GST Input Tax Credit (ITC) as per GST Law.
- h. Submission of offer against the current tender, will construe that vendo r have understood and complied with the statutory provisions applicabl e for the CPSEs which inter-alia includes Make In India, MSE, Land Borde r, Start Up India etc. as per extant guidelines of GOI **and amendments thereof, if any.**
- i. Other relevant conditions not mentioned here shall be as per General T erms and Conditions of Contracts for Purchase (SAIL- P1) (October 2023) which can be viewed / downloaded from <https://sailtenders.co.in/> □ Inf ormation □ Standard Documents □ General Terms and Conditions of Con tracts for Purchase (SAIL- P1).
- j. Bidders to submit filled, sealed & signed copy of following Annexures (a s attached):

S.NO	Description	Annexure No.
1)	Acceptance of all Tender terms & conditions	Annexure 1
2)	Format for Declaration to be given by a Make in India Supplier to be submitted on the Letter head of the Bidder	Annexure 2
3)	Format for Undertaking	Annexure 3
4)	Compliance to Specification	Annexure 4

5)	Modalities of carrying out Activity part (Installation/Erection/Testing/Commissioning)	Annexure 5
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Annexure 1

Acceptance of all Tender terms & conditions (To be submitted in Letter Head of Participant Bidders)

We,
M/s
accept all the terms & Conditions

mentioned in GeM Bid no ----- dated ----- without any deviation for the said tender. We confirm to supply tendered item as per schedule & technical specification given in the GeM Bid, Additional Technical Specification & ATC. Signed for and on behalf of the (tenderer)

Signature:

Name:

Position:

Date:

With seal of the company

Annexure 2

Format for Declaration to be given by a Make In India Supplier To be submitted on the Letter head of the Bidder

Self-Certification (for Procurement values equal to/less than Rs 10 Crs)

Certificate for M/s. Steel Authority of India Ltd. Bhilai Steel Plant, Bhilai

With reference to SAIL-.....RFQ/GeM bid No.dt..... and our offer no.

In line with the revised Public Procurement (Preference to Make In India), Order 2017 dated 16-09-2020, as amended from time to time and as applicable on the date of submission of tender, we hereby certify that we M/s_____(Bidder name) are local suppliers and item wise local

content as defined in above orders for the material to be supplied by us against above mentioned Tender No is furnished as below:

Item No.	Item Description	Local Content (%)
1.		
2.		
3.		
4.		
5.		

Note: entries to be made separately for all items as per tender.

Details of location at which local value addition will be made is as follows:

We also understand, false declaration will be in breach of the Code of Integrity under Rule 175(1)(i)(h) of the General Financial Rule for which a bidder or its successors can be debarred for up to two years as per Rule 151 (iii) of the General Financial Rules along with such other actions as may be permissible under law.

Seal and Signature of Authorized Signatory

Annexure 3

FORMAT FOR UNDERTAKING TO BE UPLOADED / SUBMITTED BY THE AUTHORIZED SIGNATORY OF THE BIDDER ON ITS LETTERHEAD ALONG WITH THE TENDER DOCUMENTS

I..... (Name and Designation) duly authorized to sign the bid for and on behalf of M/s
(herein after called the bidder) for the purpose of Tender No.....

..... of (Plant/Unit

_____, SAIL, Place _____), do hereby solemnly affirm and state, on the behalf of the bidder including its constituents, as under:

I/We have read the contents of the above-mentioned tender carefully and understand that my/ our offer will be evaluated based on the documents/ credentials submitted along with the offer and same shall be binding upon me/us. I/We undertake and warrant that in relation to the aforesaid tender, our bid was developed genuinely, independently and made with the intention to accept the Contract, if awarded.

1. BID SECURING DECLARATION:

I/ We agree that if I/We withdraw or modify our Bid during the period of validity, or if I / We are awarded the contract and I/ We fail to sign the contract, or to submit a performance security before the deadline defined in the request for bids document, I/We will be liable to be suspended for a period of six months from being eligible to submit bids against all future tenders of Plant/Unit _____ SAIL, Place _____.

2. UNDERTAKING FOR NON-COLLUSIVE TENDERING:

I/We undertake and warrant that our bid was not prepared with any agreement, arrangement, communication, understanding, promise of undertaking with any person (including any other bidder or competitor) regarding i) prices; ii) methods, factors

or formulas used to calculate prices; iii) an intention or decision to submit a bid; iv) an intention or decision to withdraw a bid; v) the submission of bid that does not conform with the requirements of the tender; vi) the quality, quantity, specifications or delivery particulars of the products or services to which this tender relates; and vii) the terms of the bid, and we also undertake that we will not, prior to the award of the Contract, enter into or engage in any of the foregoing.

3. SUB-CONTRACTING, WHEREVER APPLICABLE:

Disclosure in case of Job/ Project Contracts: I/We warrant that we have duly disclosed and will continue to disclose all intended sub-contracting arrangements relating to the Tender that we are required to disclose, including those which are entered into after the Contract is awarded.

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4. AUTHENTICITY OF DOCUMENTS SUBMITTED FOR BID EVALUATION:

I/We declare that the information and documents submitted along with the tender documents by me/ us are complete and correct and I/we are fully responsible for the authenticity and correctness of the submitted information and documents. I/We declare and certify that I/we have not made any misleading or false representation anywhere in the tender submitted including the annexures thereto. I/We understand that at any time during process of evaluation of tender or at any time after award of contract, if any information / documents submitted by me / us are found to be suppressing facts / forged / false / fabricated / fudged or incorrect, it shall lead to forfeiture of the EMD/SD and. Performance Guarantee, if submitted, besides any other action provided in the contract including banning under the extant Guidelines for Banning of Business Dealings of SAIL and initiating any legal action as deemed fit. Further, I/we and all my/ our constituents understand that my/ our offer shall be summarily rejected.

5. REPRESENTATION OF SINGLE / MULTIPLE FIRMS BY THE AUTHORIZED PERSON:

I/We hereby declare that I/we are not representing any other firm participating against this tender. OR

I/We hereby declare that I/we also represent the following firm(s) participating against this tender: - Sl No. Name of the firm

1.

2.

(Strike-off the portion which is not applicable)

6. RELATIONSHIP WITH ANY EMPLOYEE WORKING IN PLANT / UNIT CONCERNED OR DIRECTORS OF SAIL INCLUDING ITS SUBSIDIARIES:

a. I/We hereby declare that the Proprietor or any Partner of the Company or Director of our company has no relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with any employee working in Plant/Unit SAIL, Place /any of the Directors of SAIL including its subsidiaries OR

I/We hereby declare that the following Proprietor/Partner/Director of our company (has relationship (within the meaning of Section-2 (77) of the Companies Act 2013) with following employee working in Plant/Unit SAIL, Place / Directors of SAIL including its subsidiaries:

S.No	Name of Proprietor/ Partner/ Director of our company	Name of SAIL employee/ Director of SAIL	Type of relationship
1.			
2.			

(Strike-off the portion which is not applicable)

b. I/We further declare that if the contract is awarded to me/us, I/we shall inform if any of my/our relative(s) as defined above, join/joins the Plant/Unit concerned or joins as Director of SAIL including its subsidiaries at any time subsequent to the award and during continuance of the contract.

7. ANTI BRIBERY MANAGEMENT SYSTEM (ABMS) DECLARATION:

I/We undertake that we shall not give or take any financial or non-financial bribe, to or from any one during the tender or during the execution of the contract thereafter and if I/We notice any such incident happening, I/We shall report to SAIL Vigilance.

8. MINIMUM LOCAL CONTENT AS APPLICABLE & LAND BORDER SHARING REQUIREMENTS, IF APPLICABLE

I/We declare that I/We comply with the provisions of the revised Public Procurement (Preference to Make In India), Order 2017 dated 16.09.2020, as amended from time to time and also comply with the provisions of DoE Order dated 23.07.2020 with respect to the compliance related to land border sharing requirements and subsequent amendments thereto as applicable, on the date of submission of tender and at the time of Placement of Contract.

9. CONFLICT OF INTEREST (IF APPLICABLE):

I/We undertake that we shall not make any improper use of information obtained from the Purchaser with intent to gain unfair advantage in the Tender Process or for personal gain including that of our affiliates and that I/we shall submit proactively declare any conflict of interest (coming under the definition mentioned above - pre-existing or as soon as these arise at any stage) in any Tender Process or execution of the contract. I/We understand that failure to do so shall amount to a violation of the code of integrity.

10. I/We declare that I /We have disclosed any previous transgressions of code of integrity with any entity in any country during the last three years or of being debarred by any other procuring entity in our bid documents. Failure to do so would amount to violation of the code of integrity.

11. I/We undertake that we have read, understood and accepted the General Terms and Conditions of Contract of Purchase (SAIL-P1) or General Terms and Conditions of Contract for Procurement of Services (SAIL S-1), as applicable and shall be binding on us in addition to other terms and conditions mentioned in the tender document.

12. Risk Purchase : Subject to the terms and conditions of this Agreement, if the Supplier neglects or fails to perform the Agreement by the time or times agreed upon, for any reason other than Force Majeure, the Purchaser after having come to know of such negligence or non-performance, after giving 14 to 30 days' notice or any such extended period that the Supplier and Purchaser may mutually agree, to the Supplier to rectify, shall take such action as it considers fit including but not limited to taking risk purchase action for supply of the material, mitigating any losses, at the risk and cost of the Supplier as far as the undelivered quantity in that Delivery Period is concerned. The Right of the Purchaser for Risk Purchase Action is in addition to the Right of Purchaser to terminate the Contract due to the fault of the Supplier. The price differential in case of higher cost to SAIL, if any, shall have to be borne by the defaulting Supplier. Moreover, the defaulting Supplier shall have no claim over the quantity, which they failed to supply.

Seal and Signature of Authorized Signatory

3. Buyer Added Bid Specific ATC

Buyer uploaded ATC document [Click here to view the file.](#)

अस्वीकरण/Disclaimer

The Additional Terms and Conditions (ATC) have been incorporated by the Buyer after approval of their Competent Authority. The Buyer, is solely responsible for the impact of these clauses on the bidding process, its outcome, and consequences thereof including any restriction arising in the bidding process due to these ATCs and including the modification of technical specifications and / or terms and conditions governing the bid. All representations / grievances pertaining to the ATC clauses shall be raised with the buyer organization directly and not with GeM. If any of the clause(s) is/are incorporated by the Buyer regarding the following, the bid & resultant contract shall be treated as null & void. Further, GeM reserves the right, at its sole discretion, to cancel the bid forthwith, without issuance of any prior notice or intimation :-

1. Publishing Custom / BOQ bids for items for which regular GeM categories are available (unless such Custom / BOQ item is bunched with the major regular product Category Item).
2. Mandating procurement of / from specific Brand / Make / Model / Manufacturer / Dealer except in case of Single Bid / Proprietary Article Certificate (PAC) Buying.
3. Inclusion of disqualification criteria related to suspension of seller / service provider, where such suspension period has already expired.
4. Mandating submission of documents in physical form as a pre-requisite to qualify bidders.
5. Publishing bids on GeM for procurement of works.
6. Procurement of Goods by creating a Service bid on GeM & vice-versa.
7. Seeking sample with bid or approval of samples during bid evaluation process. However, trial / sample, as the case may be, shall be permitted in cases where trial / sample are allowed as per approved and published procurement policy of the Buyers' controlling Ministry / Department / State / Public Sector Enterprises Headquarters. If there is any violation of trial / sample clause with regard to approved policy of the Buyers' Ministry / Department / State / Public Sector Enterprises Headquarters, then this is to be determined and redressed by the concerned Buyer Organisation only.
8. Seeking experience from specific organization / department / institute only or from foreign / export experience.
9. Creating bid for items from incorrect categories.
10. Reference of conditions published on any external site or reference to external documents/clauses.
11. Asking for any Tender fee / Bid Participation fee, as the case may be.
12. Buyer added ATC Clauses which are in contravention of clauses defined in bid detail section, including specifications, EMD Detail, ePBG Detail and MII and MSE Purchase Preference sections of the bid, unless otherwise allowed by the applicable GeM GTC.
13. Any ATC clause in contravention with GeM GTC Clause 4 (xiii) (h) will be invalid. In case of multiple L1 bidders against a service bid, the buyer shall place the Contract by selection of a bidder amongst the L-1 bidders through a Random Algorithm executed by GeM system.
14. In a category based bid, adding additional items, through buyer added, additional scope of work/ additional terms and conditions/or any other document. If buyer needs more items along with the main item, the same must be added through bunching category based items or by bunching custom catalogues or bunching a BoQ with the main category based item, the same must not be done through ATC or Scope of Work.

Further, if any seller has any objection/grievance against these additional clauses or otherwise on any aspect of this bid, they can raise their representation against the same by using the Representation window provided in the bid details field in Seller dashboard after logging in as a seller. Buyer is duty bound to reply to all such representations and would not be allowed to open bids if he fails to reply to such representations.

All GeM Sellers/Service Providers shall ensure full compliance with all applicable labour laws, including the provisions, rules, schemes and guidelines under the four Labour Codes i.e. the Code on Wages, 2019; the Industrial Relations Code, 2020; the Occupational Safety, Health and Working Conditions Code, 2020; and the Code on Social Security, 2020 as and when notified and brought into force by the Government of India.

For all provisions of the Labour Codes that are pending operationalisation through rules, schemes or notifications, the corresponding provisions of the pre-existing labour enactments (such as The Minimum Wages Act, 1948, The Payment of Wages Act, 1936, The Payment of Bonus Act, 1965, The Equal Remuneration Act, 1976, The Payment of Gratuity Act, 1972, etc. and relevant State Rules) shall continue to remain applicable.

The Seller/ Service Providers shall, therefore, be responsible for ensuring compliance under:

- **All notified and enforceable provisions of the new Labour Codes as mentioned hereinabove; and**
- **All operative provisions of the erstwhile Labour Laws until their complete substitution.**

All obligations relating to wages, social security, safety, working conditions, industrial relations etc. and any other statutory requirements shall be strictly met by the Seller/ Service Provider. Any non-compliance shall constitute a breach of the contract and shall entitle the Buyer to take appropriate action in accordance with the contract and applicable law.

This Bid is governed by the General Terms and Conditions, conditions stipulated in Bid and Service Level Agreement specific to the Service, as the case may be, as provided in the Marketplace.

However, in case of Service, if any condition specified in General Terms and Conditions is contradicted by the conditions stipulated in Service Level Agreement specific to said Service, then it will over-ride the conditions in the General Terms and Conditions.

[यह बिड सामान्य शर्तों के अंतर्गत भी शासित है /This Bid is also governed by the General Terms and Conditions](#)

जेम की सामान्य शर्तों के खंड 26 के संदर्भ में भारत के साथ भूमि सीमा साझा करने वाले देश के बिडर से खरीद पर प्रतिबंध के संबंध में भारत के साथ भूमि सीमा साझा करने वाले देश का कोई भी बिडर इस निविदा में बिड देने के लिए तभी पात्र होगा जब वह बिड देने वाला सक्षम प्राधिकारी के पास पंजीकृत हो। बिड में भाग लेते समय बिडर को इसका अनुपालन करना होगा और कोई भी गलत घोषणा किए जाने व इसका अनुपालन न करने पर अनुबंध को तत्काल समाप्त करने और कानून के अनुसार आगे की कानूनी कार्यवाई का आधार होगा।/In terms of GeM GTC clause 26 regarding Restrictions on procurement from a bidder of a country which shares a land border with India, any bidder from a country which shares a land border with India will be eligible to bid in this tender only if the bidder is registered with the Competent Authority. While participating in bid, Bidder has to undertake compliance of this and any false declaration and non-compliance of this would be a ground for immediate termination of the contract and further legal action in accordance with the laws.

---धन्यवाद/Thank You---